

Chapter 1 General Provisions

Article 1 Purpose

The purpose of these Terms and Conditions is to define the rights, obligations, and responsibilities of the company and users, and other necessary matters related to the use of various services provided by Kuz Co., Ltd. These Terms and Conditions also apply to users when they use the company's smartphone or tablet applications, unless it contradicts the nature of these services.

Article 2 Definitions

1. "Company" refers to Kuz Co., Ltd., which provides the "Services" defined in Section 2, and acts as a virtual marketplace where "Members" can trade "Services, etc." using information and communication equipment such as computers.
2. "Service" refers to the platform provided by the "Company."
3. "Content" refers to pre-produced videos and other related materials or information provided by the "Company" online, encompassing all forms of information used in communication networks such as codes, text, voice, sound, images, or videos.
4. "Services, etc." refers to all goods or services, including "Content," that the "Company" or "Artist" sells using the "Services" provided by the "Company."
5. "User" refers to both "Members" and "Non-members" who use the "Services" provided by the "Company" according to these Terms and Conditions.
6. "Member" refers to a "User" who has registered as a member of the "Services" provided by the "Company," received a user ID, and continuously uses the "Services." "Members" are categorized into "Clients" and "Artists," and "Artist" members are further categorized into individual artists and business artists based on the type of certification, as defined by the "Company."
7. "Non-member" refers to a person who uses the services provided by the "Company" without registering as a "Member."
8. "Artist" refers to a "User" who registers posts or profiles in the form provided by the "Company" or enters into a separate service agreement with the "Company" for the purpose of selling "Content" and other items through the "Services" provided by the "Company."

9. "Fan" refers to a "User" who uses the "Company" with the intention of purchasing "Services, etc." sold by the "Company" or "Artists."
10. "ID" refers to the email address (electronic mail) entered or linked by the "Member" for identification and service use.
11. "Password" refers to a combination of characters, numbers, or special symbols set by the "Member" to verify that the "Member" matches the given "ID" and to protect confidentiality.
12. "Nickname" refers to the information exposed in the profile that replaces the real name of the "Member" and is used for mutual identification between "Members." After registration, all "Members" use the nickname set by themselves, which can be modified according to the standards set by the "Company."
13. "Coupon" refers to benefits provided by the "Company" that allow "Members" to receive a certain amount or percentage discount.
14. "Direct Payment" refers to the act of directly exchanging payment between "Artists" and "Fans" without going through the "Company."
15. Terms not defined in this article shall follow the meanings specified in individual terms, operating policies, and general commercial practices.

Article 3 Display, Explanation, and Amendment of Terms and Conditions

1. The Company shall post the contents of these Terms and Conditions, the company's name and representative's name, business address (including the address for handling consumer complaints), phone number, fax number, email address, business registration number, and e-commerce registration number on the initial screen (front) of the service for easy access by users. However, the content of the Terms and Conditions may be made available through a linked screen.
2. The contents of these Terms and Conditions are effective for all users who have agreed to them. For non-members, terms related to the services available to them apply.
3. The Company may amend these Terms and Conditions within the scope not violating relevant laws such as the "Consumer Protection in Electronic Commerce, etc. Act," the "Act on the Regulation of Terms and Conditions," the "Framework Act on Electronic Documents and Transactions," the "Electronic Financial Transactions Act," the "Electronic Signature Act," the "Act on Promotion of Information and Communications Network Utilization and Information Protection, etc.," the "Door-to-Door Sales Act," and the "Framework Act on Consumers."

4. If the Company amends these Terms and Conditions, it will notify users of the changes from 7 days before the effective date through the service notice or by other means. The Company will explicitly notify users that if they do not express their refusal within 7 days from the notification or notice, it will be deemed as approval.
5. If the Company amends these Terms and Conditions, the amended terms apply only to contracts made after the effective date. However, for existing contracts, the previous terms apply unless users express their desire to apply the amended terms within the notice period and the Company agrees.
6. Users have the right to disagree with the amended terms and, if they do not agree, they cannot use the services to which the amended terms apply. Users may stop using the services and terminate the usage contract.
7. These Terms and Conditions apply from the day the user agrees to them until the termination of the usage contract. However, some provisions of these Terms and Conditions may continue to apply even after the termination of the usage contract.
8. For matters not defined in these Terms and Conditions or for interpretation, the relevant laws, such as the Act on the Regulation of Terms and Conditions, and other service-related laws and general commercial practices shall apply.

Chapter 2 Usage Contract and Information Protection

Article 4 Membership Registration

1. When a user who wishes to become a member fills in the required information in the registration form provided by the Company and agrees to the Terms and Conditions and the personal information collection and usage consent form, a usage contract is established between the member and the Company.
2. Each individual is allowed to register only one account based on their real name.

Article 5 Restrictions on Membership Registration

1. The Company may not approve membership registration or may terminate the usage contract post hoc for the following cases:
 1. If the user uses another person's personal information such as a mobile phone number or email address.
 2. If a user who has been subject to service suspension or other sanctions by the Company terminates the usage contract during the sanction period and attempts to re-register.

3. If a former member whose usage contract was terminated by the Company attempts to re-register.
 4. If the information entered in the registration form is false, missing, or incorrectly filled.
 5. If the user intends to use the services for fraudulent purposes.
 6. If the membership registration is deemed improper based on the Company's reasonable judgment.
 7. If a person under the age of 14 registers without the consent of a legal guardian.
 8. If the name and resident registration number (or business registration number, corporate registration number) of the registrant are identical to those of an already registered member.
 9. If an artist member does not meet the Company's approval criteria.
2. The Company may withhold approval or restrict usage for the following cases. If usage is restricted, the Company will inform the user of the reason, availability period, and necessary information through service screens or individual notifications according to Article 7.
 1. If there is no capacity in the service facilities.
 2. If there are technical issues in providing the service.
 3. If the Company deems it necessary due to financial or technical reasons.
 3. Members must notify the Company of any changes to the information provided during registration within a reasonable period and update their information accordingly. Members are responsible for any damages caused by failing to notify the Company of changes.
 4. Certified artist members must update their artist certification information if they change their phone number or real name.
 5. Updated information may not be immediately reflected in member information, and members acknowledge and accept any disadvantages that may arise from this, unless the Company is grossly negligent.

Article 6 Responsibilities for IDs and Passwords

1. Members are responsible for managing their IDs and passwords.
2. Members must not allow third parties to use their IDs and passwords.
3. If a member's ID and password are stolen or used by a third party, they must immediately notify the Company and follow the Company's instructions.

Members are responsible for damages caused by failing to follow the Company's instructions.

Article 7 Notifications to Users

1. Notifications to users from the Company can be made through various means such as email, phone number, pop-up notices, banners, SMS, notification talk, customer center posts, and other service notification methods unless otherwise specified in these Terms and Conditions.
2. For matters that do not significantly affect users' rights, the Company can substitute individual notifications with a notice posted for 7 days or more on the Company's service.

Article 8 Personal Information Protection

1. The Company may collect users' personal information to provide services and will only collect the minimum necessary information.
2. The Company will establish and follow a [Privacy Policy] to protect users' personal information in compliance with the Personal Information Protection Act and the Act on Promotion of Information and Communications Network Utilization and Information Protection, etc. (hereinafter referred to as the 'Information and Communications Network Act').

Chapter 3 Service Use

Article 9 Provision and Change of Services

1. The Company provides the following services to users:
 1. Brokerage Service: All services and additional services provided to facilitate transactions between artists and clients using the Company's platform.
 2. Enterprise Service: A service that provides artists' and other users' profiles and content to companies using the Company.
 3. Content Service: A service that allows users to use or purchase content uploaded by the Company.
 4. Additional Services: Services provided by the Company based on contracts with other companies.
 5. Any other services that the Company develops or provides to users through additional contracts.
2. The Company may change the content of services due to changes in technical specifications or business policies. In such cases, the Company will notify users in advance of the reasons for the change and the content of the services.

3. The Company may stop providing certain services for operational or technical reasons. In such cases, the Company will notify users in advance and compensate users according to separate policies.

Article 10 Interruption of Services

1. The Company may temporarily suspend the provision of services in cases such as regular or temporary maintenance of service facilities, replacement or malfunction of equipment, or communication disruption. In such cases, the Company will notify users in advance or afterward through methods specified in Article 7.
2. If service interruption is due to the Company's fault, the Company will compensate users for the period of interruption according to separate policies.

Article 11 Obligations of the Company

1. The Company must make efforts to provide services continuously and stably and protect users' personal information.
2. The Company must handle complaints or disputes arising from service use promptly and notify users of the process and results.

Article 12 Obligations of Users

1. Users must not engage in the following prohibited activities:
 1. Providing false information during registration or change.
 2. Using others' information without permission.
 3. Infringing on the intellectual property rights of the Company or third parties.
 4. Distributing false information for personal gain.
 5. Engaging in activities that damage the reputation of the Company or third parties.
 6. Using the service for fraudulent purposes.
 7. Engaging in any activities that violate laws or public order and morals.
2. Users must comply with these Terms and Conditions and other rules set by the Company.

Article 13 Membership Withdrawal and Restriction

1. Users may request to withdraw their membership at any time, and the Company will process this promptly.

2. The Company may restrict or terminate membership for users who violate these Terms and Conditions, engage in prohibited activities, or disrupt the service.

Article 14 Ownership of Copyrights and Posting

1. The Company owns the copyrights for all content created by the Company.
2. Users retain the copyrights for content they create, but the Company may use this content within the scope specified in these Terms and Conditions.